

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: July 18, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 7	20CV368954	CHUN-CHE CHEN vs BRENT LEE	Motion: Consolidate 20CV368954 & 20CV368958 By stipulation of the parties and good cause appearing, the motions are GRANTED. Defendant to prepare the final order within 10 days of the date of the hearing.

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Calendar Line 1 and 2

Case Name: *Thomas Haxton v. City of Palo Alto et al.*

Case No.: 25CV459326

I. PROCEDURAL BACKGROUND

On February 19, 2025, self-represented plaintiff Thomas Haxton (“Plaintiff”) filed his complaint against several defendants,¹ including the City of Palo Alto (“Defendant”).

On March 6, 2025, the parties stipulated to allow Plaintiff to file a first amended complaint, despite him having the ability to file an amended pleading once as a matter of right. On April 3, 2025, the Court (Hon. Nishigaya) signed the stipulation which indicated that “Plaintiff may file a First Amended Complaint, attached hereto as Exhibit 1. . .” (See Court’s April 3, 2025 Order.)

On March 24, 2025, after the parties signed the stipulation, but before the Court issued its order stating that “Plaintiff shall file the First Amended Complaint no earlier than April 6, 2025, and no later than the later of (1) April 8, 2025, or (2) 15 days after the date of this Order[,]” Plaintiff filed a pleading labeled First Amended Complaint. This pleading differed from Exhibit 1 attached to the stipulation. No amended pleading was filed after the Court issued its order.

On April 4, 2025, Defendant filed a demurrer and motion to strike portions of Exhibit 1 of the stipulation (hereinafter, “Ex. 1 – FAC”). On April 29, 2025, Defendant filed a second motion to strike the entire FAC filed on March 24, 2025 (hereinafter, “March FAC”). Each motion is opposed, and replies have been filed. The motion to strike was set to be heard on July 16, 2025 and the demurrer was set for hearing on July 18, 2025. Per Code of Civil Procedure section 435, subdivision (b)(3), the Court will hear all motions on July 18, 2025.

On July 7, 2025, Plaintiff filed a motion for leave to file a second amended complaint. This motion is set to be heard on October 10, 2025.

II. FACTUAL BACKGROUND

According to the allegations of Ex. 1 – FAC, Plaintiff served as the cross country, track and field head coach, in a volunteer capacity, from August 28, 2023 through May 23, 2024 at JLS Middle School in Palo Alto. (Ex. 1 - FAC, ¶ 10.) In May 2024, Plaintiff submitted complaints regarding the sports program and thereafter brought the complaints before the Palo Alto City Council. (Ex. 1 - FAC, ¶¶ 12-13.) Plaintiff then engaged in political advocacy aimed at improving middle school sports and founded the Palo Alto Middle School Athletics Community Organization. (Ex. 1 - FAC, ¶ 14.) In response to this, Defendant retaliated against Plaintiff, including declining to rehire him for the 2025 season, despite coaching shortages. (Ex. 1 - FAC, ¶¶ 15-16.)

¹ On July 7, 2025, Plaintiff filed a request to dismiss the individual defendants without prejudice.

Plaintiff's Ex. 1 – FAC includes the following causes of action: 1) retaliation in violation of Labor Code § 1101; 2) retaliation in violation of Labor Code § 232.5; and 3) retaliation in violation of Labor Code § 6302.

The March FAC includes the following causes of action: 1) retaliation in violation of California Labor Code; 2) violation of First Amendment rights; and 3) violation of California Constitution, Article 1, Sections 2 and 3.

III. DEMURRER AND MOTION TO STRIKE EX. 1 – FAC

Defendant demurs and moves to strike portions of the Ex. 1 – FAC. However, the Court is not persuaded by Defendant's assertion that the Ex. 1 – FAC is the operative pleading. The Court issued its order on April 3, 2024 and it specifically stated that Plaintiff must **file** the Ex. 1 – FAC "no earlier than April 6, 2025, and no later than the later of (1) April 8, 2025, and (2) 15 days after the Court's approval of this stipulation." (Court's April 3, 2025 Order.)

"[A] paper is deemed filed when it is deposited with the clerk with directions to file the paper. . . . [If] the clerk [has] no proper basis for rejecting [the] complaint, it must be deemed filed when it was presented." (*Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 778; see also *Carlson v. Dep't of Fish & Game* (1998) 68 Cal.App.4th 1268, 1276.) The Court entering its order approving the stipulation did not constitute a filing of the pleading and further, no pleading was filed within the time frame provided by the Court. Thus, the Ex. 1 – FAC is not the operative pleading, as it has never been properly filed. Given that the motions are directed toward a pleading that is not properly before the Court, the Court cannot analyze the allegations contained therein for purposes of a demurrer and motion to strike. (See *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1129 [stands for the general proposition that a motion is void where it is based on an inoperative pleading].) As such, the Court declines to rule on these motions.

IV. MOTION TO STRIKE MARCH FAC

Defendant has also filed a motion to strike the entirety of the March FAC. This motion is GRANTED.

a. DISCUSSION

Under section Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.)

In this case, the parties entered into a binding stipulation wherein they agreed that Plaintiff could file "a First Amended Complaint, ***attached hereto as Exhibit 1***, in the above-captioned matter. . . . ***The parties agree that Plaintiff shall file the First Amended Complaint no earlier than April 6, 2025[.]***" (See Court's April 3, 2025 Order, pp. 1-2 [emphasis added].)

The definition of a stipulation is well established in the law. 'A stipulation is an agreement between counsel respecting business before the court . . . , and like any other agreement, or contract, it is essential that the parties or their counsel agree to its terms.' . . . It is equally clear that an attorney has authority to bind

his client in any of the steps of an action or proceeding by entering into a valid stipulation. (See Code Civ. Proc., § 283.) ““Such a stipulation . . . when made in open court . . . constitutes not only an agreement between the parties, but also one between them and the court, which the court is bound to enforce for the benefit of those interested and for the protection of its own honor and dignity.””

(*In re Marriage of Hendle* (1976) 56 Cal.App.3d 814, 818-819 [emphasis omitted].)

Moreover, California courts consistently hold that ““a valid stipulation is binding upon the parties.”” (*Gonzales v. Pacific Greyhound Lines* (1950) 34 Cal.2d 749, 755; see also *McGuire v. Baird* (1937) 9 Cal.2d 353, 356; *Harris v. Spinali Auto Sales, Inc.* (1966) 240 Cal.App.2d 447, 453 [stating also “Stipulations are conclusive as to all matters properly contained in them.”]; *Leonard v. City of Los Angeles* (1973) 31 Cal.App.3d 473, 477 [“When a proposed stipulation is accepted by the other side, such stipulation becomes binding upon the court so long as it is not illegal or contrary to public policy.”].)

Both Plaintiff and defense counsel signed the stipulation on March 4, 2025 and March 5, 2025, respectively. (Court’s April 3, 2025 Order, p. 2.) The proposed order was then filed by Plaintiff with the Court on March 6, 2025. The stipulation therefore became binding on both the parties and this Court. Despite Plaintiff’s argument that the March FAC was his one amendment as a matter of right, Plaintiff violated the parties’ stipulation when he filed a pleading, labeled First Amended Complaint, with the Court on March 24, 2025. (See Plaintiff’s Opposition to Motion to Strike, p. 1:25-26.) The filing did not include the Ex. 1 – FAC agreed to by the parties and approved by the Court. Further, it was filed several days before the timeline agreed to in the stipulation. Thus, the March FAC was not filed in conformity with the binding stipulation or this Court’s order. Accordingly, the entire pleading may be stricken.

Based on the foregoing, the motion to strike the entirety of the March FAC is GRANTED with 15 days leave to amend. (See *Hughes v. Farmers Ins. Exchange* (2024) 107 Cal.App.5th 73, 87 [“A trial court has wide discretion to allow the amendment of pleadings, and generally courts will liberally allow amendments at any stage of the proceeding . . . only where no prejudice is shown to the adverse party.”][internal quotations and citations omitted].)

V. CONCLUSION

The Court declines to rule on the demurrer and motion to strike portions of Ex. 1 – FAC. The motion to strike the March FAC in its entirety is GRANTED with 15 days leave to amend. As a result, the operative pleading at this time is Plaintiff’s complaint filed on February 19, 2025. If Plaintiff timely files an amended complaint, the October 10, 2025 hearing on Plaintiff’s motion for leave to file an amended complaint will go off calendar.

The Court will prepare the final order.

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Calendar Line 3

Case Name: *Marzieh Abdolyousefi et al vs Mojtaba Taiebat et al*
Case No.: 22CV398906

Defendant moves “to compel production of documents and for sanctions.” The motion is DENIED.

Defendant filed an unaccompanied “Notice of Motion” on May 16, 2025, pursuant to Code of Civil Procedure § 2025.450. The Court’s file contains no proof of service of this “Notice of Motion.” On June 23, 2025, Defendant filed a purported “Amended Notice,” now citing section 2025.480 as the grounds; an undated declaration from Defendant’s counsel; a declaration of Defendant dated June 23, 2025; and a Separate Statement in support of the motion. On June 24, 2025, Defendant filed, for the first time, a Memorandum of Points and Authorities in support of a motion to compel.

Plaintiff asserts nine reasons why the Court should deny Defendant’s motion on procedural grounds. The Court need not address each of Plaintiff’s arguments to agree that the motion is brought improperly.

“A motion upon all the grounds stated in the written notice thereof is deemed to have been made and to be pending before the court for all purposes, upon the due service and filing of the notice of motion[.]” (Code Civ. Proc., § 1005.5.) Section 1010 states in pertinent part: “Notices must be in writing, and the notice of a motion ... must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based. If any such paper has not previously been served upon the party to be notified and was not filed by him, a copy of such paper must accompany the notice.”

Here, Defendant’s May 16, 2025 “notice” stated “when it would be made ..., but that was about it.” (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 137.) Moreover, Section 2025.450 requires that a motion pursuant to that section set forth specific facts showing good cause justifying the production for inspection of any document described in the deposition notice and shall be accompanied by a meet and confer declaration. (Code Civ. Proc. § 2025.450(b)(1), (b)(2).) None of this is present in Defendant’s May 16, 2025 filing. Thus, that filing was not a valid notice and did not properly place a pending motion before the Court.

Defendant argues, “A moving party should be allowed to amend the notice as long as all moving and supporting papers are filed and served 16 court days before the hearing as required by § 1005(b).” (Reply, at p. 4.) The Court has several concerns with this statement as it relates to these proceedings. First, not only has Defendant failed to cite any authority for the proposition, but even if it is accepted, Defendant is arguing that a moving party should be allowed to amend a notice without leave of the court. This Court is not convinced. Second, Defendant’s notion of a piecemeal process for filing a notice and then the moving and supporting papers is contrary to section 1010, and in this case, section 2025.450. Third, Defendant seems to promote a process for amending a “notice” that was never even served on the opposing party – arguably ignoring the purpose of a notice in the first place. As discussed above, a motion is not considered pending before the court but upon “due service” of a notice. (Code Civ. Proc., § 1005.5.) Lastly, Defendant here did not simply amend a notice, but sought

to bring an entirely new “motion” based upon a different statute, attaching supporting papers for the first time (and not even all at the same time), and alleging facts that did not even exist at the time of the original “notice.” The Court cannot accept such a liberal concept of amendment.

The apparent reason for all of this is that Defendant never intended to bring a motion on May 16, 2025. Indeed, the alleged facts to support a motion to compel production did not even exist on May 16, 2025. The deposition in question had not even occurred. Defendant’s counsel states, notably *not* in a sworn declaration, that “[t]he original notice of the motion was filed on May 16 because at that time it was clear that the motion would be inevitable due to the frivolous nature of Defendant’s objections to the requests for production. The notice was filed solely to reserve a hearing date. Had I waited and filed the notice on June 23, I would not have been able to set the motion for a hearing before the discovery cut-off date.” (Reply, at p. 3 fn. 4.) This Court finds that an incomplete notice of a motion pursuant to section 2025.450 that fails to comply with sections 1005.5, *and* section 1010, *and* section 2025.450, *and* is never served, *and* is filed prematurely and solely to reserve a hearing date², is an invalid and improper effort to bring a motion. Accordingly, there was no valid notice or motion for Defendant to amend, and the Court will therefore disregard Defendant’s June 23, 2025 and June 24, 2025 filings.

In addition, both parties indicate that material has been produced since the deposition in question and the parties’ efforts to meet and confer subsequent to that deposition. Under these circumstances, the Court finds any motion to compel MOOT.

The Court will prepare the final order.

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² A reserved hearing date does not mean that a motion is in fact pending before the court as a matter of law.